

		As to Plaintiff's contention that the requested documents would show when Defendants began using the services of Plaintiff's competitor, Plaintiff has not explained why less intrusive methods cannot be used to gather this information. The same applies to Plaintiff's contention that the documents will help Plaintiff prove damages (ostensibly, for breaching the exclusivity provision). Accordingly, the <u>motion to quash</u> is GRANTED. Both parties' requests for <u>sanctions</u> are DENIED. Per CCP §1987.2, the court does not find the motion or opposition were made or opposed in bad faith or without substantial justification. Defendants to give notice.
7.	30-2024-01431381 Hart vs. Pacific Specialty Insurance Company	1. Motion to Compel Production Plaintiff, Rory Hart ("Plaintiff" or "Hart"), moves for an order compelling Defendant, Pacific Specialty Insurance Company ("Defendant" or "PSIC"), to provide further responses and to produce documents responsive to Plaintiff's Request for Production of Documents, Set One ("RFP"), as well as imposing monetary sanctions in the amount of \$16,900 against Defendant, PSIC. A Joint Report was timely filed and served pursuant to the Court's February 26, 2026 Order. (See ROA 96.) The Joint Report provides that on September 26, 2025, the parties agreed on a mutual one-week extension for Defendant to respond to Plaintiff's September 22, 2025, meet and confer letter, which extended Plaintiff's motion filing deadline from September 30, 2025, to October 7, 2025. (Joint Stipulation, ¶ 4.) The instant motion to compel was timely filed on October 6, 2025. The Joint Report provides that the parties engaged in further meet and confer efforts by telephone, that Defendant provided supplemental responses, and that RFP, Nos. 15-26, 29, and 51-52 have been resolved. What remains at issue is RFP, Nos. 27, 28, and 30. (Joint Report, ¶ 2.) <u>Defendant contends</u> that requested documents are not relevant, are protected by the constitution right to privacy, and contain trade secrets, and that these requests require a showing of compelling need that outweighs the serious privacy interests of PSIC personnel. Defendant asserts that PSIC's personnel records include confidential performance evaluations that may include highly personal information and that Plaintiff has not attempted to obtain any relevant information sought by less intrusive means. <u>Plaintiff contends</u> that personnel records no longer require a showing of compelling need, and that trial court need only balance a plaintiff's need for the personnel files against the privacy interests of a defendant's employees. A demanding party may move for an order compelling a further response to a demand for inspection if a statement of compliance with the demand is incomplete, a representation of inability to comply is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc. § 2031.310(a).) The motion must set forth specific facts showing good cause justifying the discovery sought by the discovery request. (Code Civ. Proc. § 2031.310(b)(1).) For a request to produce documents, "a party who seeks to compel production must show 'good cause' for the request . . . but where, . . . , there is no privilege issue or claim of attorney work product, that burden is met simply by a fact-specific

showing of relevance.” (*Glenfed Develop. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) If the moving party demonstrates good cause, then the opposing party must justify any objections. (*Kirkland v Superior Court* (2002) 95 Cal. App. 4th 92, 98.)

REQUEST FOR PRODUCTION NO. 27:

YOUR PERFORMANCE REVIEW of Chelsea Renfree including but not limited to any internal disciplinary actions or threatened internal disciplinary actions, from January 1, 2021, to the date of production. (The term “PERFORMANCE REVIEW” shall mean and refer to any record of record of periodic or occasional written assessments, reviews and/or evaluations of work.)

REQUEST FOR PRODUCTION NO. 28:

DOCUMENTS describing YOUR metrics used to assess or measure job performance of Chelsea Renfree from January 1, 2021, to the date of production.

REQUEST FOR PRODUCTION NO. 30:

DOCUMENTS describing specific goals set for Chelsea Renfree from January 1, 2021, to the date of production.

The instant action is an insurance bad faith action brought by Plaintiffs against PSIC which asserts two causes of action: (1) breach of the covenant of good faith and fair dealing, and (2) breach of contract.

Plaintiff sets forth facts showing good cause justifying these requests which seek the personnel records of a claims adjuster involved in the subject claim, i.e., performance review of Chelsea Renfree from January 1, 2021 to the present, metrics used to assess or measure job performance of Chelsea Renfree from January 1, 2021, to the present, and documents describing specific goals set for Chelsea Renfree from January 1, 2021, to the present.

Vague, Ambiguous, Overbroad

The objections that the requests are vague and ambiguous are **overruled**.

However, the requests are **overbroad** as they request documents “to the date of production.” **The Court finds that a time period from January 1, 2021, to January 1, 2024, properly limits the requested documents to include two years prior to loss through the alleged bad faith and denials of the claim in 2023 and 2024 by Chelsea Renfree.**

Attorney-Client Privilege and/or Work Product

“The party claiming the [attorney-client] privilege has the burden of establishing the preliminary facts necessary to support its exercise, i.e., a communication made in the course of an attorney-client relationship.” (*Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 733.) “The person claiming protection under the attorney work product doctrine bears the burden of proving the preliminary facts to show the doctrine applies. [Citation.]” (*League of California Cities v. Superior Court* (2015) 241 Cal.App.4th 976, 993.)

PSIC has not met its burden of establishing the preliminary facts necessary to support that any of the documents responsive to RFP, Nos. 27, 28, and 30 are protected by the attorney-client privilege or work product doctrine, and thus the challenges are overruled on this ground

Legal Conclusion, Compound, Unduly Burdensome, Oppressive

The requests at issue do not seek a legal conclusion and are not compound.

The objections that the requests are unduly burdensome or oppressive are **overruled**. “Oppression must not be equated with burden. The objection based upon burden must be sustained by evidence of showing the quantum of work required, while to support an objection of oppression there must be some showing either of an intent to create an unreasonable burden or that the ultimate effect of the burden is incommensurate with the result sought.” (*West Pico Furniture Co. of Los Angeles v. Superior Court* (1961) 56 Cal.2d 407, 417 [interrogatories].) PSIC’s objection based on undue burden is not supported by evidence showing the quantum of work required, and the objection based on oppression does not show an intent to create an unreasonable burden or that the ultimate effect of the burden is incommensurate with the result sought. Accordingly, these objections are **overruled**.

Trade Secrets

PSIC objects to the disclosure personnel records on the ground that they seek trade secrets and proprietary information.

In order to determine whether good cause exists to restrict dissemination of documents which purportedly contain trade secrets, Evidence Code section 1061 should be followed. (*Stadish v. Superior Court* (1999) 71 Cal.App.4th 1130, 1144-1045.) Evidence Code section 1060 provides that an owner of a trade secret has a privilege to refuse to disclose the secret. (*Id.* at p. 1144.) Evidence Code section 1061 requires that a party submit an affidavit based on personal knowledge listing the affiant’s qualifications to give an opinion, identifying the alleged trade secret, identifying the documents disclosing the trade secret, and presenting evidence that the secret qualifies as a trade secret. (*Id.* at pp. 1144-1145.)

“Trade secret” means “information, including a formula, pattern, compilation, program, device, method, technique, or process that: (1) derives independent economic value, actual or potential, from not being generally known to the public or to other persons who can obtain economic value from its disclosure or use; and (2) is the subject of efforts that are reasonable under the circumstances to maintain its secrecy.” (Civ. Code § 3426.1(d).)

Where the information sought is relevant to the general subject matter of the lawsuit and helpful to the preparation of the case, and the record in the case demonstrates prima facie that the information sought is directly relevant to a material element of a cause of action and further that the moving party would be unfairly disadvantaged in its proof absent the trade secret, failure to disclose the information would “work an injustice” within the meaning of Evidence Code section 1060 because one side would have evidence—reasonably believed to be essential to a fair resolution of the lawsuit—which was denied the opposing party. (*Bridgestone/Firestone, Inc. v. Superior Court* (1992) 7 Cal.App.4th 1384, 1392.) “Under such circumstances, . . . a court is required to order disclosure of a trade secret unless, after balancing the interests of both sides, it concludes that under the particular circumstances of the case, no fraud or injustice would result from denying disclosure.” (*Id.* at p. 1393.) “[I]n the balancing process the court must necessarily consider the protection afforded the holder of the privilege by a protective order as well as any less intrusive alternatives to disclosure proposed by the parties. (*Ibid.*) Therefore, a party claiming the trade secret privilege has the burden of establishing its existence. (*Ibid.*) “Thereafter, the party seeking discovery must make a prima facie, particularized showing that the information sought is relevant and necessary to the proof of, or defense against, a material element of one or more causes of action presented in the case, and that it is reasonable to conclude that the information sought is essential to a fair resolution of the lawsuit. It is then up to the holder of the privilege to demonstrate any claimed disadvantages of a protective order. Either party may propose or oppose less intrusive alternatives to disclosure of the trade secret, but the burden is upon the trade secret claimant to demonstrate that an alternative to

disclosure will not be unduly burdensome to the opposing side and that it will maintain the same fair balance in the litigation that would have been achieved by disclosure.” (*Ibid.*)

Here, **PSIC has not met its burden of establishing the existence of a trade secret privilege** as to its performance review of Ms. Renfree (RFP, No. 27), documents describing metrics used to assess or measure job performance of Ms. Renfree (RFP, No. 28), and documents describing specific goals set for Ms. Renfree (RFP, No. 30). Although PSIC presents evidence describing the efforts to maintain the secrecy of such documents, and that personnel records are highly confidential, PSIC does not establish that the documents sought contain a “trade secret.” (See ROA 78, Declaration of Patricia M. Fama, ¶¶ 4-7.)

Notice to Claims Individual

In passing, PSIC asserts that Plaintiff did not provide notice to Chelsea Renfree that they sought her confidential personnel records, and that PSIC also objects to the production of the records on these grounds. (Opposition, 11:18-22.)

PSIC cites to *Valley Bank of Nevada v. Superior Court* (1975) 15 Cal.3d 652 in support of its assertion that PSIC’s employees are entitled to notice and an opportunity to object even though Plaintiff did not request the information by subpoena.

In *Valley Bank of Nevada v. Superior Court* (1975) 15 Cal.3d 652, the California Supreme Court considered under what circumstances a litigant may, through ordinary civil discovery procedures, obtain from a bank information disclosed to it in confidence by a customer, and concluded that the bank must first take reasonable steps to locate the customer, inform him of the discovery proceedings, and provide him a reasonable opportunity to interpose objections and seek appropriate protective orders. (*Valley Bank of Nevada v. Superior Court* (1975) 15 Cal.3d 652, 654, 658.) The facts of the instant case are **distinguishable** as it does not involve information disclosed by Ms. Renfree to her employer in confidence, but rather, involve documents and information created by PSIC. PSIC has also objected on privacy grounds on Ms. Renfree’s behalf and such objection is addressed below.

Privacy Rights

PSIC objects that the subject requests violate the privacy rights of PSIC and its employees that are protected by the California Constitution.

With regards to PSIC’s right to privacy, the extent of any privacy rights of a business entity is not settled. (*SCC Acquisitions, Inc. v. Superior Court* (2015) 243 Cal.App.4th 741, 755.) Corporations do not have a right of privacy protected by the California Constitution. (*Id.* at pp. 755-756.) Because the corporate privacy right is not constitutionally protected, the issue presented in determining whether a request for production infringes that right is resolved by a balancing test. (*Id.* at p. 756.) “The discovery’s relevance to the subject matter of the pending dispute and whether the discovery ‘appears reasonably calculated to lead to the discovery of admissible evidence’ ” is balanced against the corporate right of privacy. [Citation.] Doubts about relevance generally are resolved in favor of permitting discovery.” (*Ibid.*)

Otherwise, “when a discovery request seeks information implicating the constitutional right of privacy, to order discovery simply upon a showing that the Code of Civil Procedure section 2017.010 test for relevance has been met is an abuse of discretion. [Citation.]” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 556 (“*Williams*”).) In evaluating potential invasions of privacy, “[t]he party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is

serious. [Citation.]” (*Id.* at p. 552.) “The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. [Citation.]” (*Ibid.*) A compelling interest or compelling need is not required all cases, although it “is still required to justify ‘an obvious invasion of an interest fundamental to personal autonomy.’ [Citation.]” (*Id.* at p. 556.)

“Unless otherwise limited by order of the court . . . any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence . . .” (Code Civ. Proc. § 2017.010.) “For discovery purposes, information is relevant if it ‘might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.’ . . . Admissibility is not the test and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence. . . . The phrase ‘reasonably calculated to lead to the discovery of admissible evidence’ makes it clear that the scope of discovery extends to any information that reasonably might lead to other evidence that would be admissible at trial. ‘Thus, the scope of permissible discovery is one of reason, logic and common sense.’ . . . These rules are applied liberally in favor of discovery.” (*Lipton v. Superior Court* (1996) 48 Cal.App.4th 1599, 1611–1612, emphasis in original.)

“A trial court must be mindful of the Legislature’s preference for discovery over trial by surprise, must construe the facts before it liberally in favor of discovery, may not use its discretion to extend the limits on discovery beyond those authorized by the Legislature, and should prefer partial to outright denials of discovery.” (*Williams, supra*, 3 Cal.5th at p. 540.)

There is a constitutional right to privacy of an employee’s personnel file, and related employment documents. (*Board of Trustees v. Superior Court* (1981) 119 Cal.App.3d 516, 526, disapproved of on other grounds by *Williams, supra*, 3 Cal.5th 231.)

Here, the requested documents, i.e., PSIC’s performance review of Ms. Renfree (RFP, No. 27), documents describing metrics used to assess or measure job performance of Ms. Renfree (RFP, No. 28), and documents describing specific goals set for Ms. Renfree (RFP, No. 30) do implicate Ms. Renfree’s constitutional right to privacy.

Plaintiff argues that the requested documents will help Plaintiff determine whether PSIC’s adjuster mistakenly denied the claim due to incompetence or lack of training, or did so for an improper reason or in accordance with improper company values or policies. Plaintiff also argues that these documents are relevant to show how PSIC assessed Ms. Renfree’s work performance, whether there were repeated issues with claims handling, whether there were complaints related to claims handling, and other related information. Plaintiff additionally argues that the relevance and need for the requested documents outweigh any privacy concern given that Plaintiff offered to stipulate to a protective order. Based upon a review of Plaintiffs’ claims and allegations, the information sought by the documents appear relevant to Plaintiffs’ claims and are narrowly tailored to one claims adjuster for a limited period of time, and therefore, the disclosure of the requested documents serves a legitimate interest.

In balancing the interests of Plaintiff in obtaining information that is relevant to whether the denial of the claim was due to incompetence or for an improper reason and Plaintiffs’ claim for bad faith against PSIC, with the privacy concerns that are implicated in producing the requested information,

the **Plaintiff's interest in the disclosure of the records appear to outweigh the privacy interests of PSIC and Ms. Renfree.** Additionally, **the protective order** entered in this case on January 28, 2026, **will adequately address the privacy concerns and diminish the loss of privacy.** (See ROA 71.)

Plaintiff asserts that personnel files have claims staff who are responsible for investigating and adjusting their claims are discoverable, citing to unpublished federal cases. Unpublished federal cases may be persuasive, but are not binding. (*Landmark Screens, LLC v. Morgan, Lewis & Bockius, LLP* (2010) 183 Cal.App.4th 238, 251, fn. 6 [“Although we may not rely on unpublished California cases, the California Rules of Court do not prohibit citation to unpublished federal cases, which may properly be cited as persuasive, although not binding, authority”])

Plaintiff cites to cases that are persuasive. For example, *Pacific Coast Surgical Center, L.P. v. Scottsdale Insurance Company* (C.D. Cal. Mar. 11, 2019) No. CV 18-03904-PSG (KSx), 2019 WL 1199024 involved an insurance coverage and bad faith lawsuit and one request for production that sought evaluation information from the personnel file of the individual claims professional who handled Plaintiff's claim, and granted a motion to compel such documents. Thus, it is factually similar to the instant action and motion which involves an insurance bad faith action and a motion to compel the production of documents from the personnel file of the claims professional who handled the Plaintiffs' claim. The District Court found that the discovery sought was relevant to the claims and defenses at issue and proportion to the needs of the case, noting that “the importance of the bad faith claims asserted in this case, the amount in controversy, and Defendant's exclusive access to the information sought, all weigh in favor of allowing the limited discovery that Plaintiff's seek,” as well as that “this type of personnel information has ‘routinely been found to be relevant and discoverable’ in bad faith actions. [Citations.]” (*Pacific Coast Surgical Center, L.P. v. Scottsdale Insurance Company* (C.D. Cal. Mar. 11, 2019) No. CV 18-03904-PSG (KSx), 2019 WL 1199024, at *2.) The District Court acknowledged that while there were legitimate privacy concerns, such concerns could be adequately addressed by the protective order that was already entered in that case. (*Id.*, at *3.)

Similarly, in *Lieberman v. Unum Group* (C.D. Cal. Oct. 14, 2021) No. EDCV 20-1798-JGB (SPx), 2021 WL 4807643, which involved a plaintiff asserting claims for breach of contract, breach of the implied covenant of good faith and fair dealing, and financial elder abuse and a motion to compel the production of personal records of individuals who were involved in assessing the plaintiff's claim for benefits, the District Court found that the personnel records were relevant to the plaintiff's theory of bad faith, noting that “many courts have found insureds are entitled to discovery on whether claims personnel had improper incentives, financial or otherwise, to deny a claim. [Citations.]” (*Lieberman v. Unum Group* (C.D. Cal. Oct. 14, 2021) No. EDCV 20-1798-JGB (SPx), 2021 WL 4807643, at *7.) Applying California law, the District Court concluded that California's constitutional right to privacy protects the personnel records of employees, but concluded that plaintiff's interest in reviewing the requested documents outweighs the competing privacy interests of the claims individual in question, and that the defendants did not identify any feasible alternatives that would make the requested disclosure unnecessary. (*Id.*, at *8.) The District Court further noted that the protective order in that case could safeguard the privacy of those third parties, and overruled the defendants' privacy objections. (*Ibid.*)

Based on the foregoing, the Court GRANTS Plaintiffs' motion to compel further responses as to RFP, Nos. 27, 28, and 30, but limits the requests to January 1, 2021, to January 1, 2024. PSIC to provide verified further responses and to produce responsive documents within 20 days of this order, subject to the protective order entered in this case.

		<u>Plaintiff's Request for Monetary Sanctions</u> Plaintiff requests that the Court impose monetary sanctions against PSIC in the amount of \$16,900. This request is denied, based on applicable law and facts. The Court may impose a monetary sanction against any party or attorney, or both, who has engaged in a misuse of the discovery process, unless it finds that the one subject to sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc. § 2023.030(a).) The burden of showing that a party acted with substantial justification or that other circumstances make the imposition of the sanction unjust is on the losing party. (<i>Golf & Tennis Pro Shop, Inc. v. Superior Court</i> (2022) 84 Cal.App.5th 127, 139.) Here, the Court finds that PSIC has met the burden of showing it acted with substantial justification with regards to PSIC's position as to RFP, Nos. 27, 28, and 30 as privacy rights are implicated. Plaintiff contends that he offered to stipulate to a protective order, no evidence supports this assertion with regards to RFP, Nos. 27, 28, and 30. (Motion, 18:26-19:3, 21:28-22:2.) However, it does not appear that Plaintiff offered to stipulate to a protective order with regards to RFP, Nos. 27, 28, and 30, although such offer was made as to other requests for production. (ROA 52, See Ex. 2 to Declaration of Regina Spurley.) Plaintiff to give notice.
8.	30-2025-01471567 Rojas vs. General Motors LLC	1. Case Management Conference 2. Motion for Attorney Fees Plaintiff, Martin Rojas, moves for an order awarding attorneys' fees in the amount of \$25,177.50 (37.3 hours at \$675/hr) and \$730.72 in costs and expenses. For the reasons set forth herein, and based on applicable law, the Court GRANTS attorney's fees in the amount of \$22,747.50 (33.7 hours at \$675/hr), and costs and expenses in the amount of \$730.72. Defendant, General Motors, LLC ("Defendant" or "GM") contends that the fee request is inflated, justifying the denial of the motion outright. In the alternative, GM contends that the Court should award no more than \$9,194.50 in fees and costs, reducing the fee award by 15.2 hours (\$10,260) as several time entries are unreasonable or reflect non-compensable services. GM additionally contends that Plaintiff's counsel did not satisfy his burden to show his declared rate of \$675 per hour is reasonable, and the rate should be reduced to \$600 per hour, and therefore find, at most, that \$8,520 in fees were reasonably incurred. Further, GM asserts that the cost entry for One Legal Fees in the amount of \$56.22 was not reasonably incurred such that it should be taxed and the Court should award no more than \$674.50 in costs. <i>Entitlement to Fees' and Costs</i> Civil Code section 1794(d) states: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794(d).) "A prevailing party under [Code of Civil Procedure] section 1032 is not necessarily a prevailing party under a separate attorney fee statute. [Citation.] As explained in <i>Wohlgemuth v. Caterpillar Inc.</i> (2012) 207 Cal.App.4th 1252, 144 Cal.Rptr.3d 545, regarding the [Song-Beverly Consumer Warranty] Act: "[W]here (as here) a fee-shifting statute is concerned, a number of Courts of Appeal